

Ukhada Land Act, 1964

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 5

Ukhad (Sugarcane) Act, 2021

Date of Royal Seal and Publication

2021.6.17

Amending Acts

1. Ukhad (First Amendment) Act, 2022 2022.3.30
2. Ukhad (Second Amendment) Act, 2024 2024.7.6
3. Special Court Act, 2031 2031.6.20
4. Judicial Administration Reform Act, 2031 2031.4.18
5. Judicial Administration Reform (First Amendment) Act, 2033 2033.4.10
6. Ukhad (Third Amendment) Act, 2042 2042.6.9
7. Ukhad (Fourth Amendment) Act, 2044 2044.5.14
8. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

9. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
10. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 16 of the year 2021

An Act Made to Make Provisions Relating to Ukhad

Preamble: Whereas it is desirable to make some legal provisions relating to Ukhad,

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Ukhad Act, 2021".

(2) This Act shall extend to the districts of Nawalparasi, Rupandehi and Kapilbastu (Palhi Majhakhanda, Shivraj and Taulihawa).

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Landowner" shall be understood to mean a person who is required to pay land revenue to the Government of Nepal by virtue of having land registered in his own name or by virtue of having a right over such land.

(b) "Farmer" shall be understood to mean a farmer who is registered in the government records as a farmer tilling Ukhad land or who has been tilling Ukhad land according to the agreement (bol kabool) made with the landowner. Provided that this term shall not denote a person tilling land obtained under Hu??a, Manakhapa,

Adhiy? or B??ain?m? (sharecropping or transfer of possessory rights) for cultivation.

(c) "Pot" shall be understood to mean the money payable by the farmer to the landowner in consideration for being allowed to cultivate the Ukhad land.

(d) "Ukhad Land" shall be understood to mean land which the farmer has been cultivating by paying cash pot to the landowner according to the agreement (bol kabool) made with the landowner.

(e) "Prescribed" or "as prescribed" shall be understood to mean prescribed or as prescribed by the rules made under this Act. 3. Land to be Registered in the Name of the Farmer: Upon the commencement of this Act, the right of the landowner over the Ukhad land which the farmer has been cultivating by paying pot to the landowner shall be extinguished and such land shall be registered in the name of the farmer in the Nambari (revenue record) as prescribed.

Provided that:-

Amended by the First Amendment.(1) If such farmer is a foreign citizen or is subsequently determined to be a foreign citizen, the Ukhad land tilled by him shall be registered in the name of the Government of Nepal, and the Government of Nepal may sell or distribute such land to landless Nepali citizens on any condition. In relation to such land, if the landowner has not received any part of the compensation payable under this Act, the Government of Nepal shall pay the entire amount, and if the landowner has already received some amount from the farmer, after deducting that amount, the balance shall be paid to the landowner by the Government of Nepal within five years either in a lump sum or in five equal installments.

(2) If the farmer fails to pay the compensation amount payable in a lump sum or as the first installment according to the proviso clause (b) of subsection (1) of section 4 accordingly, such land shall not be registered in his name. 4. Compensation: (1) In respect of land to be registered in the name of the farmer under section 3, the concerned farmer shall pay to the concerned landowner, as compensation, an amount calculated at ten times the land revenue of such land, either in a lump sum or by installment of up to five equal installments within five years from the date of registration of the land. Provided that,-

(a) If the farmer has agreed to pay the compensation amount in a lump sum, such lump sum amount, and if he has agreed to pay by installments, the amount of the first installment, shall be paid by the time of registration of the land in his name, and each subsequent installment shall be paid within one year from the date of payment of the preceding installment.

(b) The farmer may pay any installment at any time before the due date for payment of such installment.

(2) If, when the farmer goes to pay the compensation amount, the landowner refuses to accept it, the farmer may deposit such amount as a deposit in the Land Revenue Office (Mal Adda) of the area within fifteen days from the expiry of the due date for payment, and if the farmer comes to deposit it accordingly, such Land Revenue Office shall also accept it and give him a receipt.

(3) If the farmer makes a deposit under subsection (2), he shall be deemed to have paid the compensation amount to the landowner.

(4) If the farmer deposits the compensation amount under subsection (2), the Land Revenue Office shall notify the landowner of that fact.

If the landowner comes to collect such amount within thirty-five days from the date of receipt of such notice, the Land Revenue Office shall pay it to the landowner. If the landowner does not come to collect it within

such period, the amount shall escheat to the Government of Nepal.

(5) If installments other than the first installment payable under subsection (1) are not paid within the prescribed period, the land registered in the name of such farmer under section 3 shall be auctioned by the concerned Land Revenue Office in accordance with the prevailing Nepal law, and the money realized from such auction shall be received by the landowner. 5. Procedure Relating to Land Registration: (1) After the commencement of this Act, within the period prescribed by the prescribed authority, the landowner and the farmer shall submit details to such authority, specifying the particulars as set forth below, of the land which the landowner has given for cultivation and which the farmer has been cultivating, along with the original or duly certified copy of any evidence in their possession, and if the farmer has not obtained a receipt or other documentary evidence, the reason thereof shall also be stated in the details:-

- (a) Name, surname, residence and citizenship of the landowner and farmer,
- (b) District, Tappa or Parganna, Mauja (village or locality) where the land is situated, and
- (c) Boundaries and area of the land including Bigha, Katha and Dhur.

(2) If only one of the parties, either the landowner or the farmer, submits the details under subsection (1), the prescribed authority shall, within seven days from the expiry of the period under that subsection, publish a notice as prescribed specifying all the particulars of such details.

(3) If either party fails to submit the details required under subsection (1) even within fifteen days from the date of publication of the notice under subsection (2), then the details submitted by the other party shall be deemed conclusive proof against the party failing to submit details, and no complaint or claim shall be entertained later from the party failing to submit details on the ground that the submitted details are false or that any evidence relating thereto was fabricated or forged.

Provided that if a complaint is made that the landowner had not allowed the farmer to submit the details by showing fear or by any kind of coercion, and such fact is proven, nothing in this subsection shall apply.

(4) Any person dissatisfied with any particular of the notice published under subsection (2) may, within twenty-one days from the date of publication of such notice, file a complaint before the prescribed authority along with any evidence in his possession, and if a dispute regarding rights and interests arises over any land, such authority shall forward the evidence received under this subsection and subsection (1) together with the related case files to the court designated by the Government of Nepal under section 7 for adjudication. Amended by the Second Amendment. Provided that if the person required to submit details under subsection (1) fails to do so within the period specified in that subsection or subsection (3), he shall not be entitled to file a complaint under this subsection. 6. Penalties: (1) If any party, while submitting details under section 5, knowingly submits false details or forged evidence to the detriment of the other party, he may be punished with a fine of up to Rs. 1,000.00 (one thousand) or imprisonment for up to three months, or both.

(2) If any person obstructs or opposes any authorized officer engaged in doing any work under this Act from doing such work, or instigates any person to do so, the person obstructing, opposing or instigating may, by order of the prescribed authority, be punished with a fine of up to Rs. 500.00 (five hundred) or imprisonment for up to one month, or both.

(3) If neither party submits the details required under section 5 in respect of any land within the period specified in that section, the rights of both the landowner and the farmer over such land shall be extinguished and the land shall escheat to the Government of Nepal, and the Government of Nepal may re-dispose of

such land in any manner. Amended by the Second Amendment.7. Proceedings of Cases: The designated court shall conduct proceedings and dispose of cases under subsection (4) of section 5 and under section 9. Amended by the Second Amendment.8. Proceedings and Appeal: (1) The court designated under section 7 and the prescribed authority under subsection (2) of section 6 may adopt the procedure under the Special Court Act, 2049 for conducting proceedings, and may constitute a circuit bench as necessary for cases, and may conduct or cause to conduct a Sarjamin (local inspection) in accordance with prevailing law by keeping a member of the Amended by the Fourth Amendment.Rural Municipality or Municipality present as a witness.

Provided that the prescribed authority shall not have the power to detain the accused in custody during the preliminary stage.

(2) An appeal against an order given by the prescribed authority under subsection (2) of section 6 shall lie to the designated court.

(3) An appeal against a sentence imposed by the designated court under subsection (1) of section 6 under subsection (2) shall lie to the Proviso omitted by the Judicial Administration Act, 2048.High Court. Added by the Third Amendment.8A. Special Provision: (1) If any person who wishes to revive and proceed with a case relating to the registration of Ukhad land which, prior to the commencement of this section, was dismissed by the designated court due to the concerned party failing to appear on a given date, or was struck off due to failure to submit a citizenship certificate, or remained pending, or was dismissed against one party due to the other party failing to appear on a given date while the other party's case also remained pending, such person may, within the period prescribed by the Government of Nepal by notification in the Nepal Gazette Amended by the Fourth Amendment., submit a petition to the designated court; and the designated court may revive such dismissed, struck off or pending case and conduct proceedings and dispose of it.

(2) If the registration of Ukhad land could not take place because either the landowner or the farmer failed to submit the details under subsection (1) of section 5 within the prescribed period, the designated court may fix a period and, if details under subsection (1) of section 5 are received within that period, proceed with the registration of Ukhad land on the basis of such details as well.

(3) An appeal against a judgment made by the designated court concerning the registration of Ukhad land prior to the commencement of this section shall lie to the designated court within the period prescribed by the Government of Nepal by notification in the Nepal Gazette Amended by the Fourth Amendment.. 9. Pending Cases to be Transferred: Any case relating to the rights and interests of the farmer and landowner of Ukhad land which was filed before any office, court or authority other than the Supreme Court prior to the commencement of this Act and remains undecided shall, after the commencement of this Act, be transferred to the designated court constituted under section 7, Amended by the Second Amendment and disposed of by such designated court. 10. Power to Make Rules: The Government of Nepal may make rules to implement the objectives of this Act. 11.